

Property Tax Exemption FAQs

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Navigating the complexities of obtaining a property tax exemption requires deep knowledge. For qualifying organizations, a denied exemption can have a meaningful impact on your bottom line. NextGenLaw's lawyers have compiled answers to the most common questions our clients ask about property tax exemptions in Ontario. Call Our Office: (613) 294-1156 No. Exemptions are not automatic. To qualify under section 3(1)12(iii) of the Assessment Act, for example, your organization must prove that it is "organized for the relief of the poor," that it is supported in part by public funds, and that the specific property in question is owned, used, and occupied for that charitable purpose. If MPAC denies your exemption, you have the right to challenge that decision. Disputes over legal exemptions are brought to the Superior Court of Justice. Our firm routinely represents non-profits and charities in court to secure declarations of exemption. Yes. In a landmark 2025 decision secured by NextGenLaw at the Ontario Court of Appeal (Stamford Kiwanis Non-Profit Homes Inc. v. MPAC), the outdated "endeavour test" was struck down. The Court of Appeal confirmed the proper test for determining if a charitable corporation is "organized for the relief of the poor." This appellate victory made it more clear how affordable housing providers across Ontario can secure tax relief. Book a consultation with NextGenLaw to secure the tax relief your organization is legally entitled to, and protect the funding that drives your community mission forward.